ORDINANCE NO. 26-08

AN ORDINANCE OF ISLAMORADA, VILLAGE OF ISLANDS, FLORIDA, CALLING FOR A REFERENDUM VOTE TO BE HELD WITH THE GENERAL ELECTION ON TUESDAY, NOVEMBER 3, 2026; PROVIDING FOR SUBMISSION TO THE ELECTORS OF A PROPOSED AMENDMENT TO THE VILLAGE CHARTER PERTAINING TO COUNCILMEMBER VACANCIES; PROVIDING FOR PLACEMENT ON THE BALLOT; PROVIDING FOR REQUISITE BALLOT LANGUAGE; PROVIDING FOR NOTICE OF ELECTION; PROVIDING FOR AUTHORIZATION OF VILLAGE CLERK AND FOR VILLAGE CANVASSING BOARD; PROVIDING FOR SEVERABILITY; PROVIDING FOR INCLUSION IN THE CHARTER/CONFORMITY OF AMENDMENT; AND PROVIDING FOR AN EFFECTIVE DATE

WHEREAS, the Village Charter of Islamorada, Village of Islands (the "Village") provides the process by which Councilmembers will fill a Councilmember vacancy; and

WHEREAS, on May 12, 2026, the Village Council directed the Village Attorney to prepare an Ordinance proposing a change in the procedures for the filling of vacancies of the Village Council when the remainder of an unexpired term in the office of Council is equal to or more than 50 percent of the term; and

WHEREAS, pursuant to Section 11(1) of the Charter and Section 166.031, Florida Statutes, the Village Council is authorized to provide by ordinance for the submission of a proposed amendment to the Village Charter to the electorate of the Village for acceptance or rejection; and

WHEREAS, the Village Council desires to submit to the electors of the Village the following proposed Charter Amendment.

NOW, THEREFORE, BE IT ORDAINED BY THE VILLAGE COUNCIL OF ISLAMORADA, VILLAGE OF ISLANDS, FLORIDA, AS FOLLOWS:

Section 1. Recitals. The above recitals are true and correct and are incorporated herein by this reference.

Section 2. Charter Amendment. Pursuant to Section 11(1) of the Village Charter, and Section 166.031, Florida Statutes, Section 5(7)(d) of the Village Charter of Islamorada, Village of Islands, is hereby amended to read as follows: [1]

Sec 5 Village Council

* * *

(7) Vacancies; forfeitures of office; suspension; filling of vacancies.

* * *

(d) Filling of vacancies.

(i) If a vacancy occurs in the office of mayor, the vice-mayor shall serve as mayor until a new mayor is elected as provided in paragraph (3)(a) and assumes the duties of his or her office.

(ii) If any vacancy occurs in the office of any councilmember and the remainder of the unexpired term is less than 50 percent, the remaining councilmembers shall, within 30 days following the occurrence of such vacancy, by majority vote, appoint a person to fill the vacancy for the remainder of the unexpired term. If, however, the remainder of the unexpired term is equal to or exceeds 50 percent, the remaining councilmembers shall~~,~~ (1) call a special election to elect a person to fill the vacancy for the remainder of the unexpired term within six (6) months following the

[1] Deleted text is indicated by a ~~strikethrough~~ and added text is indicated by an underline.

occurrence of such vacancy; and (2) by majority vote, appoint a person within thirty (30) days to fill the vacancy until ~~the next regularly scheduled village election~~ a successor is elected and assumes the duties of his or her office.

(iii) Any person appointed to fill a vacant seat on the council shall be required to meet the qualifications of the seat to which he or she is appointed.

Section 3. Election Called. A referendum vote is hereby called along with the General Election, to be held on Tuesday, November 3, 2026, to present to the electors of Islamorada, Village of Islands, the ballot question provided in Section 5 of this Ordinance.

Section 4. Balloting. That balloting shall be conducted between the hours of 7:00 a.m. and 7:00 p.m. at the regular polling places for Village elections. All qualified Village electors who are timely registered in accordance with law shall be entitled to vote. If authorized by statute and the Village Code, early voting shall be available. Vote-by-Mail shall be available.

Section 5. Form of Ballot.

(a) That the form of the Ballot Question for the proposed Charter amendment provided for in Section 2 of this Ordinance shall be substantially as follows:

Procedure for Filling Councilmember Vacancies Exceeding Half a Term

The Village Charter provides that if a councilmember vacancy occurs and 50 percent or more of the term remains the remaining councilmembers must appoint a replacement by majority vote.

In this scenario, the proposed amendment requires the remaining Councilmembers to appoint an interim councilmember within 30 days and call a special election within 6 months to fill the vacancy for the remainder of the unexpired term.

Shall the above described Charter amendment be adopted?

Yes [ ]

No [ ]

(b) The Village Clerk and the Village Attorney are authorized to make any nonmaterial changes to the proposed text of the Ballot Question to carry out the intention of the Village Council in order to comply with applicable state law requirements pertaining to referenda found in Chapter 101, Florida Statutes.

Section 6. Notice of Election.

(a) Notice of said election shall be published in accordance with Section 100.342, Florida Statutes, in a newspaper of general circulation within the Village at least thirty (30) days prior to said election, the first publication to be in the fifth week prior to the election, and the second publication to be in the third week prior to the election.

(b) The notice of election shall be in substantially the following form:

NOTICE OF SPECIAL ELECTION

PUBLIC NOTICE IS HEREBY GIVEN THAT PURSUANT TO ORDINANCE NO. 26-08 ADOPTED BY THE VILLAGE COUNCIL OF ISLAMORADA, VILLAGE OF ISLANDS, FLORIDA (THE "VILLAGE") AN ELECTION HAS BEEN CALLED AND ORDERED TO BE HELD WITHIN THE VILLAGE ON TUESDAY, NOVEMBER

3, 2026, BETWEEN THE HOURS OF 7:00 A.M. AND 7:00 P.M., AT WHICH TIME THE FOLLOWING CHARTER AMENDMENT PROPOSAL SHALL BE SUBMITTED TO THE QUALIFIED ELECTORS OF THE VILLAGE.

Procedure for Filling Councilmember Vacancies Exceeding Half a Term

The Village Charter provides that if a councilmember vacancy occurs and 50 percent or more of the term remains the remaining councilmembers must appoint a replacement by majority vote.

In this scenario, the proposed amendment requires the remaining Councilmembers to appoint an interim councilmember within 30 days and call a special election within 6 months to fill the vacancy for the remainder of the unexpired term.

Shall the above described Charter amendment be adopted?

Yes [ ]

No [ ]

The Village Clerk and the Village Attorney are authorized to make any non-material changes to the proposed text of the Ballot Questions to carry out the intention of the Village Council in order to comply with applicable state law requirements pertaining to referenda found in Chapter 101, Florida Statutes.

Polling place information and the full text of the proposed Village Charter amendment are available at the Office of the Village Clerk, 86800 Overseas Highway, Islamorada, Florida 33036.

_____

Village Clerk

Section 7. Authorization of Village Clerk. The Village Clerk, with necessary assistance from the Monroe County Supervisor of Elections, is hereby authorized to take all appropriate actions necessary to carry into effect and accomplish the electoral provisions of this Ordinance.

Section 8. Village Canvassing Board. This election shall be canvassed by the Village Clerk in accordance with the provisions of Section 8(7) of the Village Charter and any applicable provisions of the general election laws.

Section 9. Effectiveness. Adoption of the proposed Charter Amendment shall occur if a majority of the electors voting in the referendum vote for its adoption. The adopted Charter Amendment shall be considered adopted and effective upon certification of the election results.

Section 10. Severability. The provisions of this Ordinance are declared to be severable and if any section, sentence, clause or phrase of this Ordinance shall be held to be invalid or unconstitutional, such decision shall not affect the validity of the remaining sections, sentences, clauses, and phrases of this Ordinance but they shall remain in effect, it being the legislative intent that this Ordinance shall stand notwithstanding the invalidity of any part.

Section 11. Inclusion in the Charter/Conformity of Amendment. Following adoption of the Charter Amendment, the Village Clerk shall have the Charter Amendment

incorporated into the Village Charter and shall file the revised Charter with the Department of State.

Section 12. Effective Date. This Ordinance shall become effective immediately upon adoption on second reading.

The foregoing Ordinance was offered by Steve Friedman, who moved its adoption on first reading. This motion was seconded by Anna Richards, and upon being put to a vote, the vote was as follows:

Mayor Don Horton	Yes
Vice Mayor Sharon Mahoney	Yes
Councilman Steve Friedman	Yes
Councilwoman Deb Gillis	Yes
Councilwoman Anna Richards	Yes

PASSED on first reading this 9th day of June, 2026.

Remainder of this page intentionally left blank.

The foregoing Ordinance was offered by Anna Richards, who moved its adoption on second reading. This motion was seconded by Deb Gillis. and upon being put to a vote, the vote was as follows:

Mayor Don Horton	Yes
Vice Mayor Sharon Mahoney	Yes
Councilman Steve Friedman	Yes
Councilwoman Deb Gillis	Yes
Councilwoman Anna Richards	Yes

PASSED AND ADOPTED on the second reading this 7th day of July, 2026.

DON HORTON, MAYOR

ATTEST:

MARNE MCGRATH, VILLAGE CLERK

APPROVED AS TO FORM AND LEGALITY
FOR THE SOLE USE AND BENEFIT OF
ISLAMORADA, VILLAGE OF ISLANDS ONLY

JOHN J. QUICK, VILLAGE ATTORNEY